

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 2, 2026
8:30 a.m./1:30 p.m.

5. DUNIA LANDAVERDE V. ANGEL LANDAVERDE

23FL0394

On April 20, 2026, Petitioner filed a Request for Order (RFO) seeking child support, spousal support, property control, and a set-aside of the court's prior orders. She filed her Income and Expense Declaration concurrently therewith. Both documents were served on June 2nd however Petitioner failed to serve the required blank FL-320 and Notice of Tentative Ruling.

Respondent filed his Responsive Declaration to Request for Order on June 10th. There is no Proof of Service for this document therefore the court has not read or considered it.

Petitioner is asking the court to set aside the orders made on March 26, 2026 and instead award her spousal and child support in accordance with her proposed Xspouse report. She further requests temporary exclusive use, possession and control of the 2017 Toyota Tacoma.

Civil Procedure Section 473(b) governs the circumstances in which a party may be relieved of the terms of a judgment, dismissal, order or other proceeding in instances of mistake, inadvertence or excusable neglect. Cal. Civ. Pro. § 473(b). The statute addresses instances in which relief is mandatory as well as circumstances giving rise to discretionary relief. While the mandatory provisions only apply to defaults and default judgments, the discretionary portion of the statute has a much broader application. See *Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC*, 219 Cal. App. 4th 1086 (2013) (Mandatory provisions of Section 473(b) apply only to defaults).

Generally speaking, "...the discretionary relief provision of Section 473 only permits relief from attorney error 'fairly imputable to the client, i.e., mistakes anyone could have made.' [Citations]. 'Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.' [Citation]." *Zamora v. Clayborn Contracting Group, Inc.*, 28 Cal. 4th 249 (2002) *citing* *Garcia v. Hejmadi*, 58 Cal. App. 4th 674, 682 (1997). Numerous cases have found that an attorney's conduct falling below the professional standard of care is not grounds to vacate a resulting judgment under Section 473(b). See *Carroll v. Abbott Laboratories, Inc.*, 32 Cal. 3d 892 (1982) (conduct falling below the professional standard of care is generally considered inexcusable]; See *also* *Garcia v. Hejmadi*, 58 Cal. App. 4th 674, 682 (1997)["[t]he Legislature did not intend to eliminate

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attorney malpractice claims by providing an opportunity to correct all the professional mistakes an attorney might make in the course of litigating a case”].

Here, Petitioner relies heavily on the non-discretionary provisions of Section 473(b). However, such reliance is misplaced. The non-discretionary provisions apply only where the attorney mistake, inadvertence, or excusable neglect resulted in a default or default judgment. Such is not the case here. Thus, the court turns to the discretionary provisions of Section 473(b).

Under the discretionary provisions, conduct falling below the professional standard of care is not grounds to set aside a court order. On March 25th, the court issued its tentative ruling per the local rules, no hearing was properly requested, and the tentative was adopted as the order of the court. Counsel is responsible for knowing the local rules and abiding by them, including the tentative ruling procedures. As such, the court does not find grounds to set aside the March 26th orders. The request to set aside is denied and so too are Petitioner’s other requests as they have already been addressed in the March 26th order.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE REQUEST TO SET ASIDE IS DENIED AND SO TOO ARE PETITIONER’S OTHER REQUESTS AS THEY HAVE ALREADY BEEN ADDRESSED IN THE COURT’S MARCH 26TH ORDER.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

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6. ADAM KENT LEVERTON V. ERIKA NICOLE LEVERTON

25FL1094

On April 3, 2026, Respondent filed a Request for Order (RFO) seeking spousal support, child support, attorney's fees, and an order regarding the mortgage and utilities. She filed her Income and Expense Declaration and an attorney declaration concurrently therewith. All required documents were served on April 9th.

Petitioner filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on June 17, 2026.

The Supplemental Declaration of Erika Leverton, Respondent was filed and served on June 25th. The court deems this to be a reply declaration.

Respondent is requesting guideline child support and guideline spousal support. She further requests attorney's fees in the amount of \$8,500 payable by Petitioner to Respondent's counsel. Finally, she requests an order for Petitioner to pay all mortgage and utilities for the marital residence.

Petitioner opposes the support orders on the basis that the parties are currently residing in the same residence in a nesting arrangement. However, in the event the court is inclined to award support, he asks that Respondent be imputed with income. Also, if the court does award support, then Petitioner asks that both parties be equally responsible for community debts, including all of the associated housing costs (i.e. mortgage, insurance, property taxes, etc.). He further opposes the request for attorney fees as he does not have the ability to pay the fees of both parties.

The court has equitable power to deny or modify a support order when equity requires it. *Jackson v. Jackson*, 51 Cal. App. 3d 363 (1975). In keeping with California's equitable approach to support orders, courts have found that in home support during a period of living together can constitute support sufficient to act as a credit against the amount owed in monetary terms. *Helgestad v. Vargas*, 231 Cal. App. 4th 719, 735 (2014).

Here, the court finds the most equitable outcome is to set support orders that do not commence until the 1st of the month following Respondent's move from the marital residence. Given that an order of this nature is based on the premise that the supported spouse is receiving in-home support by way of the parties residing together, Petitioner is ordered to pay the entire cost of the mortgage, insurance, property taxes and utilities on the marital residence.